

## 20STCV31424 20STCV31424

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Case Number: 20STCV31424 Hearing Date: July 7, 2026 Dept: 224

Maria Moreno and Benito Tranquilino v. Kia Motors America Inc. et al.,

### TENTATIVE RULING

The motion to strike or tax costs is GRANTED in part and DENIED in part. The Memorandum of Costs is taxed in the amount of \$3,975.00.

#### Introduction

On August 18, 2020, Plaintiffs Maria Moreno and Benito Tranquilino filed the Complaint in this action against Defendant Kia Motors America, Inc.

On June 24, 2025, following trial, the Court granted KA's motion for judgment pursuant to Code of Civil Procedure section 631.8.

On November 19, 2025, the Court entered judgment in favor of KA and against Plaintiffs, with costs to be determined upon the filing of a memorandum of costs.

On November 20, 2025, KA filed its Memorandum of Costs, seeking a total of \$16,909.24.

On December 8, 2025, Plaintiffs filed the instant Motion to Strike and/or Tax Defendant's Costs.

On June 23, 2026, KA filed its Opposition.

No reply has been filed.

#### Motion to Strike or Tax Costs

A prevailing party in litigation may recover costs, including but not limited to filing fees. (Code of Civ. Proc. §1033.5, subd. (a)(1).) "Prevailing party" includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered,

a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. (Code Civ. Proc., § 1032, subd. (a)(4).)

Under Code of Civil Procedure section 1033.5, subdivision (c)(2), allowable costs are only recoverable if they are “reasonably necessary to the conduct of the litigation.” Even mandatory costs, when incurred unnecessarily, are subject to section 1033.5, subdivision (c)(2). (Perko’s Enterprises, Inc. v. RRNS Enterprises (1992) 4 Cal.App.4th 238, 245.)

The memorandum of cost is a verified statement by the party, attorney, or agent that the costs are correct and were necessarily incurred in the case. (Cal. Rules of Court, rule 3.1700(a)(1).) If the items on a verified cost bill appear proper charges they are prima facie evidence that the costs, expenses, and services listed therein were necessarily occurred. (Oak Grove School Dist. v. City Title Ins. Co. (1963) 217 Cal.App.2d 678, 698 (Oak Grove).) “The trial court’s first determination is whether the statute expressly allows the particular item and whether it appears proper on its face; if so, the burden is on the objecting party to show the costs to be unnecessary or unreasonable.” (Foothill-DeAnza Community College Dist. v. Emerich (2007) 158 Cal.App.4th 11, 29 (Foothill-DeAnza).) The burden of showing that an item is not properly chargeable or is unreasonable is upon the party challenging the costs. (Wilson v. Nichols (1942) 55 Cal.App.2d 678, 682-683 (Wilson).)

Where the items are properly objected to, they are put at issue, and the burden of proof is on the party claiming them as costs. (Oak Grove, supra, 217 Cal.App.2d at p. 698.) In other words, the burden is initially on the objecting party to show that the costs are not proper on their face. Then, the burden shifts to the moving party to justify its costs and expenses. If the costs are not facially proper, that is, the costs are not expressly allowed under a statute, then the moving party must justify the requests for the expenses.

In Lemon Law cases, like here, Civil Code section 1794, subdivision (d), “authorizes an award of expert witness fees in addition to costs.” (Jensen v. BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 119.) Thus, costs normally not allowed by Code of Civil Procedure section 1033.5 can be allowed to the prevailing party under Civil Code section 1794. (Id. at p. 137.)

Pursuant to Civil Code section 1794, “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses... determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).)

#### Motion to Strike or Tax Costs

Defendant moves to strike or tax a number of costs in Plaintiff’s Memorandum of Costs on the grounds that they are excessive, unreasonable and/or not recoverable under the statute.

#### Item No. 1: Filing and Motion Fees

Defendant moves to strike or tax \$3,659.88 in filing and motion fees on the grounds that the amount includes “self-imposed convenience costs” and “administrative research costs” that cannot be recovered.

CCP Section 1033.5(a)(1) provides that “filing, motion, and jury fees” are allowable as costs under Section 1032. Further, evidence is generally required in order to support an objection, and the mere submission of conclusions or bare allegations typically does not justify taxing costs. (See County of Kern v. Ginn (1983) 146 Cal.App.3d 1107) (bare allegation that depositions were neither necessary nor reasonable insufficient to overcome right to costs).

Defendant has not met its burden to challenge these costs. Bare allegations that certain charges are administrative in nature are insufficient to overcome the prima facie showing established by KA’s verified Memorandum of Costs. The Court finds the

costs to be reasonably incurred.

Accordingly, the Court declines to tax costs on this basis.

#### Item No. 4: Deposition Costs

Defendant moves to strike \$4,931.35 for deposition costs on the grounds that the amount includes various unrelated and nonrecoverable "preparation charges."

Deposition costs are expressly allowable under section 1033.5, subdivision (a)(3), which permits recovery of costs for taking, video recording, and transcribing necessary depositions, as well as travel expenses to attend depositions, including hotel, car rental, gas, and parking. (*Chaaban v. Wet Seal, Inc.* (2012) 203 Cal.App.4th 49, 55.)

Plaintiffs have identified specific entries within this category that are not deposition costs at all, but rather expert preparation time and attorney work-product expenses labeled as deposition costs. These include charges described as "Complete Defense Expert Opinions Report \$675," "Expert depo prep \$200," and "Review expert deposition transcript, complete ERRATA sheet \$250." These are the professional time charges of an expert for consulting, report-drafting, and transcript review. The professional fees of expert witnesses retained by a party, as distinct from the logistics of taking a deposition, are expressly not recoverable under section 1033.5, subdivision (b)(1), regardless of whether they are incurred in connection with a deposition. (*Gorman v. Tassajara Development Corp.* (2009) 178 Cal.App.4th 44, 74; *McGarity v. Dept. of Transportation* (1992) 8 Cal.App.4th 677.) The Court will not allow recovery of expert preparation time repackaged as deposition costs.

The Court taxes \$1,125.00 from this item, representing the identified expert preparation charges (\$675 + \$200 + \$250.)

#### Item No. 5: Service of Process

Plaintiffs challenge certain surcharges within this item as luxury preferences not reasonably necessary to the litigation.

Costs of service of process by a registered process server or other means are allowable as a matter of right under section 1033.5, subdivision (a)(4).

Defendant does not provide any evidence to show that service of a John Doe is an unreasonably incurred cost. Nor has Defendant provided a basis for the contention that special handling or priority service are unreasonably incurred costs.

The Court will not tax costs on this basis.

#### Item No. 8(b): Witness Fees

The recoverability of the costs claimed under this item requires careful analysis under both section 1033.5 and Code of Civil Procedure section 998.

As a threshold matter, the professional fees of expert witnesses not ordered by the court are expressly not recoverable as costs under section 1033.5, subdivision (b)(1). (*Gorman v. Tassajara Development Corp.* (2009) 178 Cal.App.4th 44, 74.) However, Code of Civil Procedure section 998 provides a separate statutory basis for expert fee recovery where a prevailing party's offer to compromise was not beaten by the other side.

KA served its first section 998 Offer to Compromise on December 12, 2021. Plaintiffs obtained no monetary recovery. Plaintiffs failed to obtain a result more favorable than KA's offer, the Court has discretion under section 998, subdivision (c)(1), to award KA reasonable costs for expert witness services. (Chaaban, supra, 203 Cal.App.4th at p. 55.) This statutory authorization under section 998 supplies the basis for expert fee recovery that would otherwise be prohibited under section 1033.5, subdivision (b)(1), and the Court exercises its discretion to allow reasonable expert witness fees within this item.

However, the Court's discretion under section 998 extends only to the reasonable fees of the experts for their services, not to all expenses associated with the expert's retention. Meals are not recoverable as deposition-related travel or litigation costs. (Ladas v. California State Auto. Assn. (1993) 19 Cal.App.4th 761, 774.) The statute's only express provision for meals as recoverable costs applies to juror food during trial and deliberations. (Code Civ. Proc., § 1033.5, subd. (a)(2).) Section 998 does not independently authorize the recovery of meal expenses; it provides discretion to award costs for expert witness services. Restaurant charges, food delivery charges, and similar personal subsistence expenses are therefore not recoverable within this item regardless of the section 998 basis.

Similarly, per diem charges and remote-connection technology fees not tied to a specific deposition or court proceeding are not established on this record as reasonable expert witness fees within the meaning of section 998. KA's Opposition does not separately justify these components, and the Court declines to award them.

The Court taxes \$1,231.50 from this item, representing meal charges, food delivery charges, and unsubstantiated per diem and technology fees.

#### Item No. 16: Other Expenses

Plaintiffs challenge the following specific charges: hotel charges at the Omni Los Angeles during trial, restaurant charges and Uber Eats food delivery orders, valet parking, expert mileage, internal travel costs for counsel or experts to attend trial, and a \$925.00 interpreter fee for a deposition interpreter who was not court-ordered.

As to the hotel, meals, and food delivery charges, personal expenses of counsel during trial are not enumerated as allowable costs under section 1033.5, subdivision (a). Meals in particular are expressly not recoverable as litigation costs. (Ladas, supra, 19 Cal.App.4th at p. 774.) To the extent hotel costs are claimed as a discretionary cost under subdivision (c), KA has provided no evidentiary basis, such as a declaration establishing that counsel or experts traveled from out of town, demonstrating that lodging was reasonably necessary rather than merely convenient. Vague references to attending trial are insufficient.

As to the interpreter fee of \$925.00: Code of Civil Procedure section 1033.5, subdivision (a)(3) expressly authorizes recovery of fees for a certified or registered interpreter for a non-English-speaking deponent as part of deposition costs. However, this authorization is limited to interpreters retained for depositions of non-English-speaking deponents. KA has not established on this record that the interpreter at issue was retained in connection with a deposition rather than for some other purpose, that the deponent was non-English-speaking, or that the interpreter was certified or registered as required by the statute. No supporting documentation is identified in the Opposition. This charge is not recoverable on this record.

As to valet parking and expert mileage: parking and mileage incurred to attend depositions may be recoverable as travel expenses under subdivision (a)(3).

(Chaaban, supra, 203 Cal.App.4th at p. 55.) However, KA has not identified which specific deposition or proceeding these charges relate to or established that they were reasonable in amount and reasonably necessary. Undifferentiated parking and mileage charges unsupported by any documentation or explanation in the Opposition are not allowable on this record.

The Court taxes the full \$1,618.50 claimed under this item.

## Conclusion

The motion to strike or tax costs is GRANTED in part and DENIED in part. The Memorandum of Costs is taxed in the amount of \$3,975.00.

Parties who intend to submit on this tentative must send an email to the Court at [email protected] indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.